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U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 10989
(THIRD REVISION)

EXPIRATION DATE: April 20, 2000

(FOR RENEWAL, SEE 49 CFR SECTION 107.105.)

1. GRANTEE: Eagle-Picher Industries, Inc., Joplin, Missouri.
2. PURPOSE AND LIMITATION: This exemption authorizes the transportation in commerce of alkaline battery fluid with dry storage batteries and filling kits in sealed steel UN1A2 drums when shipped by, for or to the Departments of the Army, Navy or Air Force of the United States, and provides no relief from any regulation other than as specifically stated.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 173.159(g)2).
5. BASIS. This exemption is based on Eagle-Picher Industries, Inc.'s application dated March 16, 1998, submitted in accordance with 49 CFR 107.109.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description/proper shipping name	Hazard Class/ Division	Identification number	Packing Group
Battery fluid, alkali	Class 8	UN 2797	II

7. PACKAGING(S) AND SAFETY CONTROL MEASURES:
 - a. PACKAGING - The battery fluid is packed in polyethylene bottles with a double seal. The bottles are then packed in a metal or fiberboard container with absorbent material.

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The packaged battery fluid is then combined with a dry electric storage cell and filling kit which is placed in a sealed UN1A2 steel drum. All packaging must conform to the descriptions given in Eagle-Picher Industries' letter of March 12, 1993 and as illustrated in the drawings attached to the letter.

8. SPECIAL PROVISIONS.

a. Persons who receive the packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

b. Shippers using the packaging covered by this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.

9. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, cargo aircraft.

10. MODAL REQUIREMENTS A copy of this exemption must be carried aboard each cargo aircraft used to transport packages covered by this exemption. The shipper shall furnish a copy of this exemption to the air carrier before or at the time the shipment is tendered.

11. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in 49 CFR 171.8 who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by 49 CFR 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.